BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	**Case No.: _____** **DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION**

DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF

MOTION FOR PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America as follows:

1. I am the Plaintiff in this action, appearing in propria persona. I have personal knowledge of the facts stated herein and, if called as a witness, could and would testify competently thereto.

2. On or about February 10, 2026, I filed a civil action against Katie Palacios and HOPE

Psychotherapy, Inc. ("HOPE") in the San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032 (the "State Action"), asserting seven causes of action arising from HOPE's blanket retention policy in its CDCR-contracted sex offender management program. The State Action was assigned to Department 10A, the Honorable George J. Abdallah presiding.

3. During the course of discovery in the State Action, Defendants' counsel, Blaze Van Dine of Sims, Lawrence & Broghammer, proposed a protective order as a precondition to producing documents responsive to Plaintiff's Requests for Production. The parties exchanged multiple drafts of the protective order and negotiated its terms in good faith over the course of approximately two weeks.

4. On or about June 17, 2026, the San Joaquin County Superior Court entered a Stipulated Protective Order that had been agreed to and signed by both Plaintiff and Defendants' counsel. A true and correct copy of the Stipulated Protective Order is attached hereto as **Exhibit A**. The State PO established categories of "Confidential" information, restricted disclosure to enumerated categories of recipients, and limited the use of Confidential Information to the State Action and the related federal action *Newanforbi v. Derrick et al.*, Case No. 2:26-cv-00004-DJC-JDP (E.D. Cal.) (the "EDCA Action").

5. Following entry of the State PO, Defendants produced 542 pages of documents in response to Plaintiff's Requests for Production. The production included, among other materials:

(a) HOPE's Clinical Operational Manual (September 2024 edition), a 349-page proprietary document containing HOPE's treatment protocols, graduation criteria, and internal clinical policies, including policies governing the discharge and completion of clients;

(b) HOPE's Maintenance Curriculum manual, describing treatment phases for clients who have "successfully completed" earlier phases of HOPE's program;

(c) The Clinical Director job description, which includes utilization targets and profit-sharing compensation, establishing a financial architecture tied to client retention;

(d) Collateral notes from HOPE clinicians concerning Plaintiff's treatment, including a February 2025 note revoking a previously granted accommodation without documented clinical justification;

(e) Email communications between HOPE clinicians and CDCR parole agents concerning Plaintiff's treatment status, including a March 31, 2026 email from Parole Agent Long Moua instructing HOPE to record a false no-show despite acknowledging a technological error caused Plaintiff's absence;

(f) A same-day collateral note from January 6, 2026, documenting that Defendant Katie Palacios, upon being served with the State Action complaint, immediately notified her supervisor Mark Delucchi, Dr. Carrie Shinske (Executive Director of Clinical Operations), and CEO Shannon Smith, followed by a forwarded email to CDCR contacts;

(g) The HOPE Program Employee Handbook (2023), which states that no one other than Shannon Smith, CEO, has authority to modify company policy;

(h) Philadelphia Indemnity Healthcare Professional Liability policy documents (Policy No. 067968), identifying Shannon Smith as the named insured with per-incident limits of $1 million and aggregate limits of $5 million; and

(i) Homework audit records, treatment completion packet materials, and proprietary clinical assessment tools.

All or substantially all of these materials were designated as "Confidential" by Defendants

under the State PO.

6. Section VIII of the State PO provides that within sixty (60) days after the conclusion of the State Action or the EDCA Action, whichever is later, each party to whom Confidential Information was produced shall return or destroy all such materials and provide written certification under oath. The State PO defines "conclusion" as thirty (30) days after the expiration of the time to appeal or challenge any final judgment.

7. On July 15, 2026, the San Joaquin County Superior Court sustained Defendants' demurrer to the First Amended Complaint. The State Action is now disposed. The return-or-destroy clock under Section VIII has begun running, and absent relief from this Court, I will be obligated to return or destroy 542 pages of discovery materials that are directly relevant to this action.

8. This action arises from substantially the same nucleus of operative fact as the State Action. Both actions challenge HOPE's blanket retention policy under which no parolee is determined to have completed sex offender treatment prior to discharge from parole, HOPE's false treatment-status reports to CDCR, and the retaliatory conduct directed at me for exercising my right to complain. The state-court discovery materials are essential to proving these claims.

9. By way of example, HOPE's Clinical Operational Manual contains the central documentary evidence in this case: on page 294, the Manual states that HOPE is "prohibited from discharging a client from treatment for any reason," while on page 295, the Manual describes a six-step graduation process culminating in a Treatment Completion Certificate that clinicians are "not permitted to provide directly to clients." This internal contradiction is the documentary confirmation of the fraud at the heart of this action.

10. The Clinical Director job description, the email communications between HOPE and

CDCR agents, the collateral notes, and the Employee Handbook are all essential to establishing Defendant Shannon Smith's personal knowledge and approval of the blanket retention policy, the financial incentive architecture underlying the policy, and the coordination between HOPE and CDCR in implementing the policy against me.

11. If I am forced to return or destroy these materials and then re-propound the identical discovery requests in this action, the result would be wasteful duplication of effort for all parties and the Court. Defendants would be required to re-collect, re-review, and re-produce the same documents. I would be required to re-draft and re-serve the same requests. The Court would be required to adjudicate any disputes over the same production. This duplication serves no legitimate purpose because the Proposed Protective Order provides equivalent or greater protections than the State PO.

12. I have not attached any state-court discovery documents as exhibits to the Complaint filed in this action. I have not disclosed the contents of any documents designated as Confidential under the State PO to any person not authorized to receive them. In the Complaint, I have referenced only facts -- not documents -- in setting forth the factual allegations. I file this Motion contemporaneously with the Complaint to put the issue before the Court at the outset and to seek authorization before using or relying on any Confidential materials in this action.

13. As of the date of this Declaration, Defendants have not been served with the Complaint in this action and have not appeared. Pre-filing conferral with Defendants' counsel regarding this Motion was therefore not practicable. I will promptly provide Defendants with a copy of this Motion upon service of the Complaint and will meet and confer with Defendants' counsel regarding any modifications to the Proposed Protective Order.

14. Attached hereto and incorporated by reference are the following exhibits:

Exhibit A: True and correct copy of the Stipulated Protective Order entered in *Newanforbi v. Palacios et al.*, San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032, signed on or about June 17, 2026.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 16, 2026, at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per